

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202007028	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 10/08/2020 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 75
Date/Time CV Reported Thu, 10/22/2020 1:32 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 10/22/2020 1:32 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 Joseph Nicosia	05336	949395	DB CEIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Warren Hutchinson	21648	954952	075 PCT
2. POM Milton Calderon	04165	965678	OFSCSRG
3. DT3 Justyna Maksimiuk	2235	953038	075 DET
4. POM Mordecai Austrie	18677	954508	INT CIS
5. CPT Hariton Marachilian	00000	935245	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Joseph Nicosia	Abuse: Detective Joseph Nicosia entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT3 Joseph Nicosia	Abuse: Detective Joseph Nicosia searched § 87(2)(b) in Brooklyn.	B . Exonerated
C . Officers	Force: Officers pointed their guns at § 87(2)(b)	C . Exonerated

Case Summary

On October 22nd, 2020, the CCRB received the following telephone complaint from § 87(2)(b) [BR 1].

On October 8th, 2020, at about 6 a.m. Detective Joseph Nicosia of the Criminal Intelligence Section (CIS), and multiple other MOS assigned to CIS entered and searched § 87(2)(b) in Brooklyn, pursuant to search warrant § 87(2)(b) [Allegation A: Abuse of Authority – Entry, exonerated; Allegation B: Abuse of Authority – Search, exonerated]. In the course of executing the warrant, officers pointed their firearms at § 87(2)(b) [Allegation C: Force – Firearm Pointed, exonerated]. Police Officer Mordecai Austrie issued a summons for § 87(2)(b) to § 87(2)(b) an adult resident of § 87(2)(b), and arrested two juveniles at the location for unknown offenses.

The CCRB is not in possession of any video for this case. § 87(2)(g)

Findings and Recommendations

Allegation A: Abuse of Authority – Detective Joseph Nicosia entered § 87(2)(b) in Brooklyn.

Allegation B: Abuse of Authority – Detective Joseph Nicosia searched § 87(2)(b) in Brooklyn.

Allegation C: Abuse of Authority – Officers pointed their firearms at § 87(2)(b)

It is settled that on October 8th, 2020, at about 6 a.m., Detective Nicosia and multiple other MOS executed no-knock search warrant § 87(2)(b) [BR 2] at § 87(2)(b) in Brooklyn. Detective Nicosia applied for the warrant upon probable cause for believing that a firearm and other items would be recovered from § 87(2)(b) or the person of § 87(2)(b). The Supreme Court of New York, Kings County issued the warrant on § 87(2)(b). During the course of the warrant execution, officers pointed their firearms at § 87(2)(b) acknowledged during his CCRB interview [BR 3] that officers subsequently presented him with the search warrant. The 75th Precinct Command log (pg. 7) for October 8th, 2020 [BR 4] indicates that Police Officer Mordecai Austrie issued a summons to § 87(2)(b) for § 87(2)(b), and arrested two juveniles at the location for unknown offenses.

NYS CPL § 690 authorizes designated police officers, within a designated time period, to search a residence, person, or personal property pursuant to a valid search warrant. Executing officers may use as much force as is necessary to gain compliance, short of deadly physical force (which is permitted only when there is a credible and immediate threat to the life of a member of service or third party). New York State Criminal Procedure Law § 690 (§ 690.05 – 690.55) [BR 5].

Under NYPD PG § 221.01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a member of service determines that the potential for serious physical injury is no longer present, he must holster the firearm as soon as practicable. NYPD Patrol Guide § 221.01 [BR 6].

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **allegations A and B be exonerated.**

§ 87(2)(g)

§ 87(2)(g) . Therefore, it is recommended that **allegation C** be exonerated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 7].
- Detective Nicosia had been a member of service for ten years, over which time he has been the subject of six complaints and fourteen allegations.
 - Case 201304366 involved allegations of gun pointed, search of person, threat to damage property, and discourtesy, all of which were substantiated and resulted in charges. The NYPD did not impose a penalty.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- On May 27th, 2021, the CCRB queried the NYC Comptroller's Office for related notices of claim. The results will be added to the case file upon receipt [BR 9].

Squad No.: 7

Investigator:	<u>Will Rasenberger</u>	<u>Inv. Will Rasenberger</u>	<u>05/27/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Manager Vanessa Rosen</u>	<u>June 4, 2021</u>
	Signature	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date